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Tentative Ruling

Delena v. A Team Security, Case no.

24VECV04148

Hearing date July 10, 2026

Defendant ATS' Motion for Summary

Judgment

Defendant

Deanco's Motion for Summary Judgment

Plaintiffs

R. and T. Delena sue defendants Deanco Healthcare, LLC dba Mission Community Hospital ("Deanco") and A Team Security, Inc. ("ATS") for negligence, premises liability and loss of consortium. Plaintiffs allege R. Delena was stabbed by an unidentified assailant on the sidewalk while attempting to enter the hospital. Defendants each filed motions for summary judgment; Deanco filed a joinder to ATS' motion. Plaintiffs oppose both.

A

motion for summary judgement must be granted if there is no triable issue of material fact as to each cause of action. Code Civ. Proc. §437c(a), (c); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843. To obtain summary judgment, moving party must prove each element of the cause of action. Harris v. Rudin, Richman & Appel (2002) 95 Cal.App.4th 1332, as modified Mar. 5, 2002. A defendant can do so by showing plaintiff cannot establish one or

more elements of the claim or there is a complete defense to that claim. Aguilar, supra, at 853. Once moving party meets this burden, the burden shifts to responding party to show a triable issue of material fact as to that cause of action or a defense thereto. Harris, supra, at 1337.

Defendant ATS' Motion for Summary Judgment

Plaintiffs

object to the Bower declaration. Objections 1-7 OVERRULED. ATS objects to the Marcisz declaration. Objections 1-118 OVERRULED.

Plaintiffs

offer exhibits in support of their opposing separate statement, attached to the declaration of counsel Pettitt. 6/4/26 Decl. Pettitt. As the declaration was unsigned, it did not constitute an affidavit under penalty of perjury. Code Civ. Proc. §2015.5. ATS objected to the evidence as inadmissible under Code Civ. Proc. §437c.

Plaintiffs'

notice of errata included an amended signed declaration. 6/15/26 Decl. Pettitt, Not. of Errata. ATS objected, arguing this constituted improper new evidence after its reply was filed. The court continued the hearing, granting ATS leave to file a responsive sur-reply. 6/24/26 Min. Order. The request to strike the proffered evidence is MOOT. ATS' objections to the evidence attached the Pettitt decl. nos. 1-22 are OVERRULED.

ATS

moves for summary judgment as to the entire complaint, arguing plaintiffs cannot show ATS owed plaintiffs a duty nor breached such duty. ATS argues plaintiffs cannot show a causal relationship between any alleged breaches of duty and plaintiffs' damages. The complaint alleges premises liability, negligence and loss of consortium; duty, breach and causation are required for premises liability and negligence. *Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998. As loss of consortium claim is a derivative claim, it survives only if underlying claims survive.

"The

owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence." *Brooks v. Eugene Burger*

Mgmt. Corp. (1989) 215 Cal.App.3d 1611, 1619, 1624. A defendant has no duty to prevent a third party's unforeseeable crime. *Margaret W. v. Kelley R.* (2006) 139 Cal. App.4th 141, 152 ("for there to be a duty to prevent third party criminal conduct, that conduct must be foreseeable").

The

California Supreme Court held landlords owe no duty where plaintiff was the victim of violent crime on landlord's property because "violent criminal assaults were not sufficiently foreseeable," absent records demonstrating the landowner's knowledge of prior violent criminal acts similar in nature to the assault suffered by plaintiff. *Ann M. v. Pac. Plaza Shopping Ctr.* (1993) 6 Cal.4th 666, at 680-681, disapproved of on other grounds *Reid v. Google, Inc.* (2010) 50 Cal.4th 512. To establish foreseeability, and thus a duty to protect against violent crime, plaintiff must offer admissible evidence of "prior similar incidents of violent crime on the landowner's premises." *Id.* at 679.

The

subject property is located at 14850 Roscoe Boulevard, Panorama City. SSMF 1. The property is owned by Deanco and leased to Deanco Healthcare, LLC, a separate entity doing business as Mission Community Hospital, since 7/1/17. SSMF 3. ATS contracted with Mission Community Hospital to provide security services from 10/28/19 through 7/1/22. SSMF 5, 8-9. The contract between ATS and Mission Community Hospital states the hospital is "solely responsible for the assessment of security needs including number of guards, deployment of guards, scope of work and management." SSMF 6. The contract states ATS' responsibilities extend no further than observation and reporting, and ATS will, under no circumstances, be responsible for preventing personal injuries or thefts. SSMF 7.

The

incident occurred on 9/19/22, when Doe assailant attacked plaintiff R. Delena outside the main hospital entrance after following him through the premises' parking garage. SSMF 31, 48-64. The attack was unanticipated by R. Delena and lasted for a few seconds. SSMF 60, 64. At the time of the attack, four ATS security guards staffed Mission Community Hospital. SSMF 12. Each guard is properly trained and licensed. SSMF 13-14. A fifth guard was staffed in the parking garage during the COVID-19 pandemic, but this position was eliminated by Mission Community Hospital around 9/19/21. SSMF 19-25.

ATS

argues there is no history of violent criminal stabbing or criminal assault in the parking garage or outside premises adjacent to the hospital. ATS argues it had no notice nor any basis to foresee the assault, precluding imposition of duty. ATS argues its guards fulfilled their assigned patrol duties, and the decision to eliminate the parking garage guard post was made by Mission Community Hospital, so cannot constitute a breach by ATS. This is sufficient to shift the burden to plaintiffs.

Plaintiffs

argue they can present facts creating a triable issue as to foreseeability, and the totality of the circumstances establishes foreseeability. A 'totality of the circumstances' argument is unavailing under California law. To establish liability for an independent third-party's criminal act, specific evidence of prior similar criminal acts must be proffered. See *Ann M.*, *supra*, at 619.

ATS

had authority to direct when and where its guards patrolled. SSAMF 77-79, 82. ATS categorized Mission Community Hospital as a high-traffic, high-risk facility. SSAMF 85-87. Mission Community Hospital is located near a purported transient encampment (SSAMF 87) and has had a high incidence of transient individuals attempting to access the parking garage. SSAMF 89.

ATS

retains an incident reporting system for Mission Community Hospital. SSAMF 94. ATS reports 23 incidents from February 2020-August 2022. SSAMF 94. Of those incidents, 17 occurred in the parking garage that Doe assailant followed R. Delena through prior to the attack, which occurred on the public sidewalk. SSAMF 95. None of the 17 parking garage incidents involved a violent physical attack. *Id.* Two of the 23 incidents involved physical altercations outside Mission Community Hospital premises; neither involved assault with a deadly weapon. SSAMF 96-98.

Plaintiff

argues ATS stood in a special relationship to R. Delena, so owed him a duty, citing *Marois v. Royal Investigation & Patrol. Inc.* (1984) 162 Cal.App.3d 193. *Marois* does not hold that a security company stands in a special relation to individuals using the property that company is contracted to protect. *Id.* at 202. The scope of any assumed duty depends upon the

nature and scope of the undertaking in which the security guard was engaged. *Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 249. The contract between ATS and Mission Community Hospital states ATS was to observe and report, not to prevent injury to each and every person on the premises. SSMF 6-7. Further, the complaint fails to plead existence of a duty based on a special relationship.

Plaintiffs

argues the totality of the circumstances shows the subject property was in a high-crime area, so the assault was foreseeable. The law does not support imposition of duty simply because a location is alleged to be dangerous or a high crime area. To establish foreseeability, plaintiffs must present evidence of prior similar criminal activity -- in this case, violent physical assault with a deadly weapon.

Plaintiffs

offer the declaration of security expert Marcisz. See Decl. Marcisz, paras. 2-7. Marcisz opines ATS failed to meet the applicable standard of care by failing to post a guard in the parking garage and by failing to communicate the potential threat to R. Delena. *Id.* at paras. III(B)(1)-(16). Marcisz opines the assault was foreseeable, as numerous of the 23 reported incidents involved weapons being brandished, and multiple thefts and nonviolent confrontations occurred near the premises. *Id.* at III(A)(1)-(12). Marcisz does not opine that any prior physical assault with a deadly weapon occurred on the premises or surrounding the property.

Plaintiffs

fail to establish a triable issue of material fact that the stabbing of R. Delena was foreseeable. *Ann M.*, *supra*, is instructive: evidence of criminal activity on premises before the complained-of incident, including bank robberies, purse snatchings, a man pulling down women's pants, transients loitering in common areas, concerns raised by tenants and employees for their safety, statistical crime rate and evidence of requests to provide security patrols were insufficient to establish foreseeability of a violent sexual assault involving a knife. *Id.* at 671-672. The California Supreme Court is clear that general prior criminal incidences are "not similar in nature" to a violent assault such that foreseeability is established. *Id.* at 680.

Absent

a special relationship or foreseeability, plaintiffs cannot establish the necessary element of duty. Plaintiffs failed to plead or present admissible

evidence that a special relationship existed between R. Delena and ATS. Plaintiffs failed to establish a triable issue of fact as to foreseeability. ATS' motion for summary judgment is GRANTED.

Defendant Deanco's Motion for Summary Judgment

Plaintiffs

object to the declaration of Herman. Objections 1-4 OVERRULED.

The

court incorporates the above law. Deanco owns the subject property with a triple-net lease to Deanco Healthcare, LLC dba Mission Community Hospital, a separate, non-party entity. Decl. Herman para. 3. Mission Community Hospital contracted with ATS to provide security services for the subject property. Id. The assault on R. Delena occurred on the public sidewalk directly outside the subject property. Decl. Nguyen, paras. 9-10.

Deanco

argues the attack was not foreseeable, echoing ATS' duty arguments, discussed above. Deanco argues it neither controlled the premises nor retained any form of security, so is not liable for an assault alleged to have occurred in part due to ATS' failures. "Public policy precludes landlord liability for a dangerous condition on the premises which came into existence after possession has passed to a tenant... It would not be reasonable to hold a lessor liable if the lessor did not have the power, opportunity, and ability to eliminate the dangerous condition." *Garcia v. Holt* (2015) 242 Cal.App.4th 600, 604. The lease of the premises to Mission Community Hospital and lack of a contract between Deanco and ATS is sufficient to shift the burden to plaintiffs.

The

triple-net lease between Deanco and Mission Community Hospital states Mission Community Hospital shall be subject to rules and regulations set forth by Deanco. SSAMF 23. The lease defines the parking garage as a separate portion of the property, not part-and-parcel of the hospital property itself. SSAMF 25-26.

Plaintiffs

argue triable issues of fact exist as to whether the triple-net lease between Deanco and Mission Community Hospital transferred full or partial control of the parking garage. Plaintiffs restate their argument that the attack was foreseeable and, as such, if Deanco retained control of the parking garage,

Deanco is liable for the failure to assign a security guard. This is unavailing.

The

complaint's allegations and opinion of plaintiffs' expert Marcisz confirm the assault occurred on the public sidewalk directly outside the Mission Community Hospital lobby. See Compl. para. 25, Decl. Marcisz 7:1-2. Whether Deanco retained authority over the parking garage is irrelevant where undisputed facts show: (1) the assault did not occur in the parking garage; and (2) Deanco was not contracted, or in privity, with ATS, which is alleged to have breached its duty by failing to post a guard in the parking garage.

Plaintiffs

argue Deanco knew or should have known of the alleged dangerous conditions surrounding the subject property. Plaintiffs repeat the 'totality of the circumstances' argument, relying on Marcisz's declaration. Plaintiffs fail to produce proof of prior violent assaults with a deadly weapon on or around the subject property. This is insufficient under *Ann M.*, *supra*, to establish foreseeability. Plaintiffs proffer no evidence to create a triable issue of fact that Deanco had or should have had control over the sidewalk outside the lobby where the assault took place. Deanco's motion for summary judgment is GRANTED.